

1 AN ACT relating to crimes and punishments.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 533.020 is amended to read as follows:

- 4 (1) When a person who has been convicted of an offense or who has entered a plea of
5 guilty to an offense is not sentenced to imprisonment, the court shall place him or
6 her on probation if he or she is in need of the supervision, guidance, assistance, or
7 direction that the probation service can provide. Conditions of probation shall be
8 imposed as provided in KRS 533.030, but the court may modify or enlarge the
9 conditions or, if the defendant commits an additional offense or violates a
10 condition, revoke the sentence at any time prior to the expiration or termination of
11 the period of probation. When setting conditions under this subsection, the court
12 shall not order any defendant to pay incarceration costs or any other cost permitted
13 to be ordered under KRS 533.010 or other statute, except restitution and any costs
14 owed to the Department of Corrections, through the circuit clerk.
- 15 (2) When a person who has been convicted of an offense or who has entered a plea of
16 guilty to an offense is not sentenced to imprisonment, the court may sentence him
17 or her to probation with an alternative sentence if it is of the opinion that the
18 defendant should conduct himself or herself according to conditions determined by
19 the court and that probationary supervision alone is insufficient. The court may
20 modify or enlarge the conditions or, if the defendant commits an additional offense
21 or violates a condition, revoke the sentence at any time prior to the expiration or
22 termination of the alternative sentence.
- 23 (3) When a person who has been convicted of an offense or who has entered a plea of
24 guilty to an offense is not sentenced to imprisonment, the court may sentence him
25 or her to conditional discharge if it is of the opinion that the defendant should
26 conduct himself or herself according to conditions determined by the court but that
27 probationary supervision is inappropriate. Conditions of conditional discharge shall

1 be imposed as provided in KRS 533.030, but the court may modify or enlarge the
2 conditions or, if the defendant commits an additional offense or violates a
3 condition, revoke the sentence at any time prior to the expiration or termination of
4 the period of conditional discharge.

- 5 (4) **(a)** The period of probation, probation with an alternative sentence, or conditional
6 discharge shall be fixed by the court and at any time may be extended or
7 shortened by **a** duly entered court order or as modified by the Department of
8 Corrections through the application of probation program credits under KRS
9 439.268.

10 **(b) 1. Any~~[Such]~~ period of supervision imposed under paragraph (a) of this**
11 **subsection, with extensions thereof, shall not exceed five (5) years, or**
12 **the time necessary to complete restitution, whichever is longer, upon**
13 **conviction of a felony, nor two (2) years, or the time necessary to**
14 **complete restitution, whichever is longer, upon conviction of a**
15 **misdemeanor.**

16 **2. If a violation of any condition imposed by the court during a period of**
17 **supervision imposed under paragraph (a) of this subsection is alleged**
18 **to have occurred within the last sixty (60) days of the period of**
19 **supervision, the court shall have sixty (60) days after the expiration of**
20 **the period of supervision imposed under paragraph (a) of this**
21 **subsection to determine if a violation occurred and the appropriate**
22 **action for the violation.**

23 **(c) 1. If a defendant who is subject to a period of supervision under**
24 **paragraph (a) of this subsection is alleged to have committed a**
25 **violation of the conditions imposed by the court, and a warrant has**
26 **been issued by the court based on an allegation of that violation, the**
27 **time between the issuance of the warrant and the defendant's first**

1 appearance before the court after service of that warrant shall be
2 tolled and not count towards any period of supervision imposed under
3 paragraph (a) of this subsection, unless the court finds that the
4 defendant did not violate any condition imposed by the court.

5 2. The court shall have sixty (60) days after the defendant's first
6 appearance to schedule and complete any proceedings related to an
7 alleged violation described in subparagraph 1. of this section.

8 (d) Upon completion of the probationary period, probation with an alternative
9 sentence, or the period of conditional discharge, the defendant shall be
10 deemed finally discharged, provided no warrant issued by the court is pending
11 against him or her, and probation, probation with an alternative sentence, or
12 conditional discharge has not been revoked.

13 (5) Notwithstanding the fact that a sentence to probation, probation with an alternative
14 sentence, or conditional discharge can subsequently be modified or revoked, a
15 judgment that~~[which]~~ includes such a sentence shall constitute a final judgment for
16 purposes of appeal.